

March 4, 2011



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 12744
(SIXTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of electric storage batteries together with materials of trade (MOTs) and a cesium-containing apparatus in the same motor vehicle as not subject to the requirements of 49 CFR Subchapter C other than the requirements of this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Subchapter C except § 173.21 and as prescribed in this special permit.
5. BASIS: This special permit is based on the application of Alcoa Inc., dated November 22, 2010, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/Division	Identification Number	Packing Group
Batteries, wet, filled with acid, <i>electric storage</i>	8	UN2794	III
Materials of trade (MOTs) as specified in 49 CFR 173.6	N/A	N/A	N/A
Dangerous Goods in Apparatus (Cesium beam timing instrument)	9	UN3363	N/A

7. SAFETY CONTROL MEASURES:a. PACKAGING -

1. The MOTs must be packaged in conformance with § 173.6(b) and marked in conformance with § 173.6(c).
2. The electric storage batteries must conform to § 173.159(e) (2)-(4).
3. The cesium beam timing apparatus, which contains no more than 5 gram of cesium, is contained in a welded stainless steel hermetically sealed cylinder maintained under vacuum. Only one cesium beam timing apparatus may be transported in a vehicle. The entire apparatus shall be overpacked in strong outer packaging or securely blocked and braced within the vehicle so as to prevent movement during carriage.

b. OPERATIONAL CONTROLS -

1. The MOTs are limited to the hazardous material classes listed in § 173.6(a) (1) and having a gross mass or capacity not over those listed in § 173.6(a) (1) (i-iii).

2. The packaged MOTs must be blocked, braced or otherwise secured to prevent contact with or damage to the batteries or cesium beam timing apparatus.
3. Transportation must be by private motor carrier.
8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport electric storage batteries together with MOTs and a cesium containing apparatus under this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety -- OHMSPA, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Administration, Department of Transportation, Washington, D.C. 20590. Attention: DHM-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SW/AM